

The [Rotterdam Convention on the Prior Informed Consent Procedure for Certain Hazardous Chemicals and Pesticides in International Trade](#) (the Rotterdam Convention) is a multilateral agreement which establishes a procedure for obtaining and exchanging information between countries regarding certain hazardous chemicals. The Rotterdam convention covers pesticides and industrial chemicals that have been banned or severely restricted for health or environmental reasons by Parties.

The Rotterdam Convention

The Rotterdam Convention was adopted at a conference in Rotterdam in September 1998. Australia ratified the Rotterdam Convention on 20 May 2004 with obligations coming into force for Australia on 18 August 2004.

The objectives of the Rotterdam Convention are:

- To promote shared responsibility and cooperative efforts among Parties in the international trade of certain hazardous chemicals in order to protect human health and the environment from potential harm.
- To contribute to the environmentally sound use of those hazardous chemicals, by facilitating information exchange about their characteristics, by providing for a national decision-making process on their import and export and by disseminating these decisions to Parties.

The Rotterdam Convention creates obligations for the implementation of the Prior Informed Consent (PIC) procedure.

What is PIC?

PIC is a procedure that:

- does not involve international bans
- helps participating countries learn more about the characteristics of potentially hazardous chemicals that may be shipped to them
- initiates a decision-making process on the future import of these chemicals by the countries themselves
- helps convey this decision to other countries.

The procedure promotes a shared responsibility between exporting and importing countries in protecting human health and the environment from the harmful effects of certain hazardous chemicals (industrial chemicals and pesticides) that are being traded internationally.

[Annex III of the Rotterdam Convention](#) lists all of the chemicals subject to PIC process.

Australia does not automatically adopt controls for chemicals listed in the Rotterdam Convention. Each chemical must be separately ratified by the Australian parliament following inclusion in Annex III. The lists of chemicals relevant to Australia may be found in Schedule 9 of the [Customs \(Prohibited Imports\) Regulations 1956](#) and Schedule 2 of the [Customs \(Prohibited Exports\) Regulation 1958](#).

Please note if a chemical is subject to international trade controls under the [Stockholm Convention](#) and is also listed in the Rotterdam Convention, the Stockholm Convention controls are imposed as these are more stringent.

[expand all]

Manufacture and use

No specific manufacture or use controls are applicable for chemicals subject to the Rotterdam Convention.

Import

The import of chemicals listed under the Rotterdam Convention is controlled by domestic legislation administered by the Australian Pesticides and Veterinary Medicines Authority (APVMA). More information can be found on through the [APVMA website](#).

Export

The export of chemicals listed under the Rotterdam Convention requires written permission. Permission may be granted if the export meets the requirements of the importing party as well as the following requirements:

- the importing country is a party to the convention, or
- the chemical is controlled under the convention as a severely hazardous pesticide formulation, but the formulation to be exported is at a lower concentration.

Applications for permission to export chemicals controlled under the Rotterdam Convention must be made using the [online permit application](#) system.

Penalties

Under the [Agricultural and Veterinary Chemicals \(Administration\) Act 1992](#) a person must not import, manufacture, use or export an active constituent for a proposed or existing chemical product, or a chemical product, in contravention of a condition or restriction prescribed by a regulation. A penalty of 300 penalty units may apply.

Under the [Customs Act 1901](#) a person commits an offence if a person engages in conduct contravening the conditions or requirements of their license or permit. A penalty of Imprisonment for 2 years or 20 penalty units, or both may apply.

Export Notifications

Under Article 12 and Annex V of the Rotterdam Convention, the exporting Party of a banned or severely restricted chemical shall provide an export notification to the importing Party. The importing Party has an obligation to acknowledge receipt of the export notification within 30 days.

If you are intending to export a chemical that is listed under the Rotterdam Convention and not registered for use in Australia, you are required to arrange with the department, an export notification from the relevant international authority. This is in addition to requirements for an export permit. Unlike an export permit that is required for each shipment, an export notification can cover multiple shipments for a period of 12 months.

If you require an export notification please contact the Agvet Chemicals International and Domestic Policy section at ControlledChemicals@aff.gov.au.

Please note that arranging an export notification can take up to 30 days and allowances in the export date must be made to accommodate this timeframe.

Please also note, in the case that you require an export notification, an export permit will not be granted until the importing Party has approved the export notification.

Other permissions

Granting permission under the Customs or Agvet Regulations does not replace any requirement for permission under any other legislation, including from the [APVMA](#).

Further information

For information on industrial chemicals controlled under the Rotterdam Convention, contact the [National Industrial Chemicals Notification and Assessment Scheme \(NICNAS\)](#) on (02) 8577 8800 or Freecall 1800 638 528

Further information can be found on the [Rotterdam Convention website](#).

Contact information

Inquiries can be directed to:

Authorised Officer

International Policy – Forests and Agvet Chemicals Section

Agvet Chemicals and Forestry Branch

Department of Agriculture, Fisheries and Forestry

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